

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yanjiao Chen	Team: Team # 3	CCRB Case #: 201303874	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 05/03/2013 9:30 PM	Location of Incident: § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]	Precinct: 120	18 Mo. SOL 11/3/2014	EO SOL 11/3/2014	
Date/Time CV Reported Sat, 05/04/2013 1:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/09/2013 1:09 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Leonid Shatkin	18486	947487	120 PCT
2. POM Thomas Reeder	4133	947385	120 PCT
3. Officers			120 PCT
4. An officer			120 PCT
5. POM Genaro Barreiro	00308	950050	120 PCT
6. SGT Patrick Oneill	05581	942281	120 PCT
7. POM Garrett Roces	11083	940650	120 PCT
8. POF Danielle Donoghue	09209	941674	120 PCT
9. POM Frank Muirhead	20981	945260	120 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Efrain Hernandez	04437	949099	120 PCT
2. POM James Casale	27945	929848	120 DET
3. POM Brian Mullarkey	03595	949376	120 PCT
4. POM Michael Liconti	18132	943486	120 PCT
5. POM Tyler Kalman	26488	932840	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Thomas Reeder	Force: Outside of § 87(2)(b) [REDACTED] PO Thomas Reeder used physical force against § 87(2)(b) [REDACTED]	[REDACTED]

Officer(s)	Allegation	Investigator Recommendation
B.POM Leonid Shatkin	Force: Outside of § 87(2)(b) PO Leonid Shatkin used physical force against § 87(2)(b)	
C.POM Genaro Barreiro	Force: Outside of § 87(2)(b) PO Genaro Barreiro used physical force against § 87(2)(b)	
D.POM Garrett Rocas	Force: Outside of § 87(2)(b) PO Garrett Rocas used physical force against § 87(2)(b)	
E.POM Frank Muirhead	Force: Outside of § 87(2)(b) PO Frank Muirhead used physical force against § 87(2)(b)	
F. Officers	Force: Outside of § 87(2)(b) officers struck § 87(2)(b) with asps, batons, and a radio.	
G. An officer	Force: Outside of § 87(2)(b) an officer used a chokehold against § 87(2)(b)	
H.POF Danielle Donoghue	Force: Outside of § 87(2)(b) PO Danielle Donoghue used physical force against § 87(2)(b)	
I. Officers	Discourtesy: Outside of § 87(2)(b) officers spoke rudely to § 87(2)(b) and individuals.	
J. An officer	Abuse: Outside of § 87(2)(b) an officer threatened § 87(2)(b) with the use of force.	
K. An officer	Abuse: At the § 87(2)(b) in Staten Island, an officer threatened to arrest § 87(2)(b) and § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

On May 4, 2013, § 87(2)(b) filed this complaint with IAB via telephone, on behalf of § 87(2)(b), § 87(2)(b), and § 87(2)(b) generating IAB Log No. § 87(2)(b). The aforementioned complaint was forwarded to CCRB on May 9, 2013.

On May 3, 2013, § 87(2)(b), § 87(2)(b), and § 87(2)(b) were at a park at § 87(2)(b) in Staten Island, when PO Leonid Shatkin, PO Thomas Reeder, PO Efrain Hernandez, and PO Genaro Barreiro of the 120th Precinct approached them. The following allegations resulted:

- **Allegation A: Force – Outside of § 87(2)(b) in Staten Island, PO Thomas Reeder used physical force against § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
- **Allegation B: Force – Outside of § 87(2)(b) in Staten Island, PO Leonid Shatkin used physical force against § 87(2)(b)**
§ 87(2)(b)
- **Allegation C: Force – Outside of § 87(2)(b) in Staten Island, PO Genaro Barreiro used physical force against § 87(2)(b)**
§ 87(2)(b)
- **Allegation D: Force – Outside of § 87(2)(b) in Staten Island, PO Garrett Rocas used physical force against § 87(2)(b)**
§ 87(2)(b)
- **Allegation E: Force – Outside of § 87(2)(b) in Staten Island, PO Frank Muirhead used physical force against § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(g)
- **Allegation F: Force – Outside of § 87(2)(b) in Staten Island, officers struck § 87(2)(b) with asps, batons, and a radio. § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(g)
- **Allegation G: Force – Outside of § 87(2)(b) in Staten Island, an officer used a chokehold against § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(g)
- **Allegation H: Force – Outside of § 87(2)(b) in Staten Island, PO Danielle Donoghue used physical force against § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(g)
- **Allegation I: Discourtesy – Outside of § 87(2)(b) in Staten Island, officers spoke rudely to § 87(2)(b) and individuals.**
§ 87(2)(b)
- **Allegation J: Abuse of Authority – Outside of § 87(2)(b) in Staten Island, an officer threatened § 87(2)(b) with the use of force. § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(g)
- **Allegation K: Abuse of Authority – At § 87(2)(b) in Staten Island, an officer threatened to arrest § 87(2)(b) and § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(g)
- **§ 87(4-b), § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(g)

§ 87(2)(g)

This case was ineligible for mediation because one of the victims was arrested during the incident.

Results of Investigation

Video Footage

Several videos were obtained, only two of which were relevant to the investigation. The other videos were taken either before or after the struggle.

Video # 1 (201303874 20130625 0833 DM.mov in IA #26)

This video was provided by § 87(2)(b) and the duration is 4:49. This footage is of poor quality, taken presumably from a cell phone, and few of the shots are clear. § 87(2)(g)

The main female voice heard on the recording, § 87(2)(g) explicitly complains about the officers beating her son, and then says that she needs to get her mother. § 87(2)(g)

At the beginning of the recording, several people can be heard screaming and yelling, including § 87(2)(b). In response, officers § 87(2)(g) state “back up.” Several silhouettes of officers can be seen, and they can be heard saying “get it out of my eyes,” referring to the light of the camera. § 87(2)(b) yells “Oh my god, I cannot believe how y’all did that to my son,” after which there is a brief, less than one second shot, of a black male with blood on his face. § 87(2)(b) yells and screams intensely in the background.

An officer, § 87(2)(g) can be heard saying “He hit me. First off, you weren’t out here, he punched me in my face.” After much blurry footage, an elderly black male is depicted holding onto another black male, who appears to be § 87(2)(b). At this point, nothing can be clearly seen, but § 87(2)(b) is heard stating “I’m going with him,” in regards to § 87(2)(b) being escorted to a patrol vehicle for transport to the 121st Precinct stationhouse. When § 87(2)(b) states “Take me with him,” someone can be heard vaguely saying “Ma’am you can’t.”

There is a brief shot of the license plate of a patrol vehicle, revealing marked RMP # 4131(13). § 87(2)(b) can then be heard stating “stop being the fucking wise guy, he can’t move,” regarding some officers apparently trying to get § 87(2)(b) to move over inside the back seat of the patrol vehicle. A second shot of a license plate of another patrol vehicle is shown, revealing marked RMP # 3273. Near the end of the footage, the video image abruptly stops, but the audio continues. § 87(2)(b) can be heard saying “Oh, you wiping the blood off your sneakers?” § 87(2)(b) alleged that one of the officers who kicked § 87(2)(b) had gotten § 87(2)(b) blood on his shoes.)

Video # 2 (201303874 20130625 0833 DM.mp4 in IA #25)

The video duration is only 00:11 seconds. This footage is of poor quality and unfocused with the audio consisting mostly of screams from persons outside the frame.

The video briefly depicts the latter part of § 87(2)(b)s handcuffing. § 87(2)(b) is chest-side down on the ground, right next to a gate. He is surrounded by uniformed officers and other males in plainclothes, presumably officers as well. PO Leonard Shatkin, who was identified in the video because his name plate can clearly be seen at 00:04, is handcuffing § 87(2)(b) hands, and appears to be the

only officer making contact with § 87(2)(b). The other officers are seen standing, flush, next to PO Shatkin, their feet surrounding § 87(2)(b) body. No officer is kicking, stomping, or punching § 87(2)(b). There are no nightsticks, batons, asps, or pepper sprays that can be seen.

The right side of § 87(2)(b)'s face is making contact with the ground. At 00:06, a large stain of blood is visible on the ground where § 87(2)(b) face is, and § 87(2)(b) makes eye contact with the camera and says something inaudible.

The ending shot depicts PO Shatkin pulling on § 87(2)(b)'s handcuffed hands.

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. She is a black woman with brown hair and brown eyes. She is 5'9" tall and weighs 120 pounds.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on June 20, 2013 (enc. F-1 – F-9).

On May 3, 2013, § 87(2)(b) sat in a park between § 87(2)(b) and § 87(2)(b) with her half-sister § 87(2)(b), her cousin § 87(2)(b) (last name unknown), and her friends, § 87(2)(b) and § 87(2)(b) (last name unknown). Some people in the group were drinking, sharing one bottle of Hennessy cognac, but § 87(2)(b) was not drinking.

§ 87(2)(b)'s niece § 87(2)(b) (last name unknown), called to warn them that the police were coming. Some people disposed of the alcohol by an unknown method, and began to exit the area. At 9:30 p.m., PO Efrain Hernandez, PO Thomas Reeder, PO Leonid Shatkin, and PO Genaro Barreiro, all of whom were at the time of the incident of the 120th Precinct § 87(2)(g), approached the girls. § 87(2)(b) said ten officers, some uniformed and some in plainclothes, approached, § 87(2)(g), § 87(2)(b), and § 87(2)(b) walked in front, with § 87(2)(b) and § 87(2)(b) behind them. When PO Hernandez stopped § 87(2)(b), § 87(2)(b) turned around and grabbed her, telling PO Hernandez that § 87(2)(b) didn't have anything to say to the police.

At some point during this interaction, § 87(2)(b)'s brother § 87(2)(b) approached them and asked PO Barreiro what was going on. PO Barreiro responded that it was none of his business and attempted to grab § 87(2)(b) arm. § 87(2)(b) turned and ran to get § 87(2)(b)'s mother. No officers pursued him.

PO Reeder attempted to grab § 87(2)(b)'s arms, but § 87(2)(b) moved her shoulders back and forth in an effort to evade him. PO Reeder handcuffed § 87(2)(b) within a few seconds, but § 87(2)(b)'s right wrist fell out of the handcuffs. § 87(2)(b) initially stated that she took off one of the handcuffs, but later corrected her statement, saying the handcuff slipped off on its own.) PO Reeder again grabbed her right hand and put the right handcuff back on her wrist. He tried to get § 87(2)(b) on the ground, but there was spit in front of her and she protested, asking to be moved away from it. PO Reeder pushed § 87(2)(b)'s hands and her left shoulder down, to get her onto the ground, where she lay on her stomach. § 87(2)(b) noticed later that her top right shoulder was scraped and bleeding from having been brought to the ground.

§ 87(2)(b) did not see any force used to handcuff § 87(2)(b). § 87(2)(b) was also eventually handcuffed despite having moved her body constantly after she too was brought to the ground. § 87(2)(b) did not see how § 87(2)(b) went down to the ground. § 87(2)(b) did not see anyone injured at the location.

After § 87(2)(b) was transported to the 120th Precinct stationhouse, § 87(2)(b) was seated next to her. He had blood on the top of his head, the front of his face, as well as the side of his torso, but § 87(2)(b) did not see exactly where he was injured. He was requesting water and appeared to be losing consciousness as he was intermittently speaking and then slumped forward, not moving.

Victim: § 87(2)(b) § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. He is a black man with black hair and brown eyes. He is 6'2" tall and weighs 180 pounds.

Arrest Photograph

§ 87(2)(b) arrest photo (enc. E-5) reveals that he has a cut to his left cheek and the right side of his forehead. Also, he appears to have minor swelling around his left eye.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on June 20, 2013 (enc. D-1 – D-5). § 87(2)(g)

On May 3, 2013 at approximately 9:30 p.m., § 87(2)(b) was walking from § 87(2)(b) toward § 87(2)(b) in Staten Island. His friend § 87(2)(b) told him that the police had his sister, § 87(2)(b) in custody. § 87(2)(b) approached the officers, identified himself as § 87(2)(b)'s brother, and asked what was going on. PO Barreiro, would not explain why § 87(2)(b) was under arrest, and told § 87(2)(b) that he should not be at the location.

§ 87(2)(b) left the location to get his mother, § 87(2)(b). When they returned five minutes later, the scene was "chaos." The officers had § 87(2)(b) handcuffed on the ground, and another officer said to § 87(2)(b) "There he go, right there." More than ten officers, some in uniform, some in plainclothes, then grabbed § 87(2)(b) and brought him to the ground. § 87(2)(b) stated he was beaten with clubs, radios, and was kicked in the ribs. He was unable to describe the type of club that struck him. There was also an officer on § 87(2)(b)'s back, who had his hands over § 87(2)(b)'s nose and mouth, stopping his breathing. He stated that the officers were telling him to put his hands behind his back. § 87(2)(b) told the officers that he couldn't and was subsequently hit in the right forehead with either a club or radio. § 87(2)(b) continually called out for help. He was not moving his arm, kicking his legs, or squirming his body. § 87(2)(b) stated that he never punched or struck an officer.

§ 87(2)(b) was not able to describe any of the officers because he was face forward on the ground and did not see them. He was unable to estimate for how long he was beaten or at what point he was handcuffed because he lost consciousness at some point. The next thing § 87(2)(b) remembered was waking up in § 87(2)(b). He suffered a bruise to the bone under his right eye, scrapes on his elbows, and a broken right rib.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. She is a black female with black hair and brown eyes. She is 5'6" tall and weighs 154 pounds.
- § 87(2)(b) works as a § 87(2)(b).
- § 87(2)(b) is the mother of § 87(2)(b) and the grandmother of § 87(2)(b) and § 87(2)(b).

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on June 20, 2013 (enc. D-1 – D-8). § 87(2)(f)

§ 87(2)(b) was at home in her apartment at § 87(2)(b) in Staten Island when an unidentified female came and informed her that her granddaughter, § 87(2)(b) was being arrested. § 87(2)(b) went outside of her building and observed about 150 officers and a number of police vehicles covering the entire block.

PO Hernandez and PO Reeder were “manhandling” § 87(2)(b), § 87(2)(b), and § 87(2)(b) who were handcuffed. PO Reeder, § 87(2)(g), slammed § 87(2)(b) against the door of a marked patrol vehicle, and said, “shut the hell up.” § 87(2)(b) asked PO Reeder if she could get her cell phone and PO Reeder replied, “Fuck no.” She was then placed in the patrol vehicle.

§ 87(2)(b) arrived at the location and started screaming, “Look at what they are doing to my sister!” § 87(2)(b) held § 87(2)(b) in her arms and told him to calm down. Approximately ten to fifteen uniformed officers then grabbed at § 87(2)(b) who was moving his arms away from them. § 87(2)(b) was not physically combative in any other manner. No officer told § 87(2)(b) to stop resisting or ordered him to give them his hands. He was handcuffed and pinned to the ground, face down on the sidewalk in front of a gate. About thirty officers then began to “beat him down,” punching, kicking, and stomping on him. One of the officers had blood on his shoes. § 87(2)(b) became hysterical and began screaming, “Jesus” and “You’re killing him.” An unidentified officer, who was described as a white man with black spikey hair, approximately 5’7” tall, 165 pounds, and in his late 20s, approached § 87(2)(b) and said, “Shut the fuck up. Someone get the pepper spray and spray her.” Another unidentified officer, standing next to § 87(2)(b) told her to calm down and to please step back.

§ 87(2)(b) daughter, § 87(2)(b) was crying and screaming, but did not interfere. PO Danielle Donoghue of the 120th Precinct, § 87(2)(g) “jumped” § 87(2)(b) from behind and brought her to the ground. § 87(2)(b) pleaded with PO Donoghue to let her up so that she could get § 87(2)(b) away from the location. PO Donoghue did let § 87(2)(b) up, and the latter moved § 87(2)(b) to a stoop where they continued to observe § 87(2)(b) being beaten. Because of the beating, § 87(2)(b) became unable to walk and was bleeding from his face. § 87(2)(b) was put in a police vehicle and taken to the 120th Precinct stationhouse.

At approximately § 87(2)(b), § 87(2)(b) and § 87(2)(b) arrived at § 87(2)(b). They became hysterical when they were not allowed to see § 87(2)(b). An unidentified officer told § 87(2)(b) and § 87(2)(b) to get off the floor or they would be arrested.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of this incident. She is a black woman with black hair and brown eyes. She is 5’10” tall and weighs 165 pounds.
- § 87(2)(b) was working as a § 87(2)(b) at the time of this incident.
- § 87(2)(b) is the mother of § 87(2)(b) and § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on June 20, 2013 (enc. E-6 – E-10). § 87(2)(g)

§ 87(2)(b) was in her home at § 87(2)(b) in Staten Island, when § 87(2)(b) calling her from outside, stating that § 87(2)(b) had been arrested. When § 87(2)(b) and § 87(2)(b) arrived at § 87(2)(b) there were a lot of officers but they did not see § 87(2)(b). While § 87(2)(b) and § 87(2)(b) were standing in the street, the officers grabbed § 87(2)(b) from behind stating “He’s getting arrested.” § 87(2)(b) complained that § 87(2)(b) had just gotten to the location, but an officer responded, “He was there, you were not here.” § 87(2)(b) was handcuffed while he was still standing in the street. He did not strike any officer during this time or move his arms. Several officers then “charged” at § 87(2)(b) and § 87(2)(b) causing them to fall to the ground near the gate that divides the park and the sidewalk.

Officers then started “kicking, punching, and stomping” § 87(2)(b) while he was on the ground. Officers were pulling § 87(2)(b) away, but she was still trying to get to § 87(2)(b). § 87(2)(b) was not kicking his legs or moving his body as he was handcuffed and pinned down. § 87(2)(b) stated that she later saw an unidentified officer cleaning blood off of his boots.

When § 87(2)(b) was able get away from the crowd of officers, she turned to an unidentified officer and said something to the effect of, “Can’t you stop them?” The officer just told § 87(2)(b) to back up. § 87(2)(b) from a distance of approximately two feet from § 87(2)(b) and the officers, yelled “Please let me get my son.” § 87(2)(b) was not interacting physically with any of the officers.

PO Donoghue then “attacked” her from behind, causing her to fall face-forward onto the ground. PO Donoghue landed on her back. She asked PO Donoghue, “Am I being arrested,” to which PO Donoghue replied she was not. § 87(2)(b) then got to her feet, after asking for permission from PO Donoghue, and walked to § 87(2)(b) who was lying “lifeless” on the ground. She started to wipe the blood off of § 87(2)(b) face when his uncle, § 87(2)(b) helped him stand and put him in a patrol vehicle. An unidentified officer was telling § 87(2)(b) to move over inside the car. Another uniformed officer went to the other side of the vehicle and stated, “I can pull him the fuck over.” At this point, § 87(2)(b) started “going crazy,” and recorded the incident on her cell phone.

Attempts to Contact Civilians

Seven witnesses were identified with regards to this incident: § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b). None could be contacted for a statement.

No contact information could be found for § 87(2)(b). Two please call letters were sent to all six of the other witnesses. The first please call letters to § 87(2)(b) and § 87(2)(b) were returned to the CCRB by the United States Postal Service. The phone numbers found for § 87(2)(b), § 87(2)(b), and § 87(2)(b) proved to be disconnected. There was no phone number found for § 87(2)(b). Five attempts to contact § 87(2)(b) and § 87(2)(b) were made, with voicemails being left each time. Neither § 87(2)(b) nor § 87(2)(b) has contacted the CCRB.

NYPD Statements:

Subject Officer: PO THOMAS REEDER

- PO Reeder was § 87(2)(b) old at the time of the incident. He is a white man who is 5’7” tall, weighs § 87(2)(b) pounds, and has red hair and blue eyes.
- PO Reeder worked from 7:30 p.m. on May 3, 2013, to 4:05 a.m. on May 4, 2013. He was assigned to a solo foot post, and was in uniform. He has since been promoted to the rank of sergeant and transferred to the 71st Precinct.

Memo Book

PO Reeder’s memo book entries pertaining to this incident (enc. H-1 – H-3) state verbatim that “at 9:20 p.m., three females stopped rear of § 87(2)(b) for open container by PO Hernandez. As PO Hernandez attempted to write a summons to § 87(2)(b), § 87(2)(b), § 87(2)(b) did attempt to pull § 87(2)(b) away. Reeder arrested § 87(2)(b) after brief struggle, pulled hands away multiple times. Reeder witnessed PO Hernandez struggling with § 87(2)(b) and § 87(2)(b) while holding § 87(2)(b) in custody. Reeder then brought § 87(2)(b) to sector car to be transported to 120 Pct.”

CCRB Statement

PO Reeder was interviewed at the CCRB on March 25, 2014 (enc. H-3 – H-7).

On May 3, 2013, at around 9:30 p.m., PO Reeder was walking with PO Hernandez, PO Barreiro, and PO Shatkin when they observed § 87(2)(b) holding a plastic cup at § 87(2)(b) in Staten Island. There were two other females, § 87(2)(b) and § 87(2)(b) standing with § 87(2)(b). All four officers approached § 87(2)(b) with the intentions of issuing her, and her alone, a summons for open container. There were no other civilians in that area at the time.

PO Hernandez conducted the stop and spoke with § 87(2)(b). He was asking her for her license

when § 87(2)(b) interfered and tried to pull § 87(2)(b) away. That was when PO Reeder, who had not said anything beforehand, tried to stop § 87(2)(b) telling her that § 87(2)(b) needed to stay there. § 87(2)(b) however continued to interfere, and act aggressively and irately. PO Reeder therefore decided to arrest § 87(2)(b) § 87(2)(a) 160.50 and told her such. When PO Reeder went to handcuff § 87(2)(b) he grabbed her arms, but she put up a struggle by wriggling about, causing PO Reeder to bring her to the ground. PO Reeder could not remember the details of how he got § 87(2)(b) to the ground, but he denied slamming her onto the ground, and denied § 87(2)(b) ever hitting her head in the process of getting onto the ground.

PO Reeder left § 87(2)(b) handcuffed, face down on the ground, in order to help PO Hernandez who had § 87(2)(b) identified via the investigation, on his back, hugging his neck in a chokehold. PO Reeder did not know where PO Shatkin and PO Barreiro were at that point. As PO Reeder tried to help PO Hernandez, he noticed that § 87(2)(b) had slipped out of her handcuffs, so he redirected his attention towards § 87(2)(b) brought her onto the ground for a second time and handcuffed her again.

By this point in the incident, there were more than fifty civilians and a lot of officers present. PO Reeder remembers the situation becoming a Level One Mobilization, which he explained during his interview meant that all officers in the vicinity must respond to the location. After handcuffing § 87(2)(b) a second time, PO Reeder picked her up, and escorted her to a patrol vehicle. Because § 87(2)(b) was wriggling around a lot, and screaming and cursing, PO Reeder placed her against the patrol vehicle door so he could open up the backseat door before placing her inside. He denied slamming § 87(2)(b) against a patrol vehicle.

PO Reeder sat in the back seat with § 87(2)(b) as two unidentified officers transported them to the 120th Precinct stationhouse. At the stationhouse, PO Reeder waited for a female officer to search § 87(2)(b) and stayed to help PO Shatkin with the arrest processing paperwork. He did not see § 87(2)(b) at § 87(2)(b) but did see him at the stationhouse. § 87(2)(b) was fully conscious, but bleeding in the face at the stationhouse. He was treated immediately, and brought to the hospital. PO Reeder also saw § 87(2)(b) and § 87(2)(b) at the stationhouse, and did not recall either of them or § 87(2)(b) complaining of any injuries.

PO Reeder did not recall using any profanity against § 87(2)(b) nor did he hear PO Hernandez do so. PO Reeder also did not see any officer deploy their asp, batons, or pepper spray, and denied doing so himself. He also denied hearing any officer at any point during the incident say profanity to a civilian.

Subject Officer: PO LEONID SHATKIN

- *PO Shatkin was § 87(2)(b) old at the time of the incident. He is a white man who is 5'10", weighs 240 pounds, and has brown hair and brown eyes.*
- *On the date of incident, PO Shatkin worked the same tour and assignment as PO Reeder, and was partnered with PO Reeder and PO Hernandez. He has since been transferred to the 121st Precinct.*

Arrest Reports

On § 87(2)(b)'s arrest report (arrest # § 87(2)(b) (enc.), PO Shatkin stated verbatim that "at the place of occurrence, defendant did come to scene and started screaming and waving his arms in air causing crowd to gather. Defendant did punch PO Hernandez (sh# 4437) in left side of his face causing bruising and swelling. Defendant fled the scene. Defendant then came back and enticed the crowd to fight the police screaming let my sister go. Defendant did resist arrest by flailing his arms and falling to the ground and placing his hands under his upper body and refusing to be handcuffed. Defendant did injure his forehead when he threw himself to the ground."

On § 87(2)(b)'s arrest report (arrest # § 87(2)(b) (enc.), PO Shatkin stated verbatim that "at the place of occurrence defendant attempted to pull § 87(2)(b) away from PO Hernandez (sh# 4437) who was trying to write an open container summons to § 87(2)(b) PO Reeder (sh# 617) then

attempted to place defendant in handcuffs but defendant did pull arms away multiple times before being placed under arrest.”

On § 87(2)(b)'s arrest report (arrest # § 87(2)(b) (enc.), PO Shatkin stated verbatim that “at the place of occurrence defendant did possess an open container (Hennessey, 12 oz. cup) in a public place. § 87(2)(b), § 87(2)(b) then attempted to pull defendant away from officers. Defendant then attempted to physically interfere with PO Reeder (sh# 617) who was placing § 87(2)(b) in handcuffs by trying to pull § 87(2)(b) away from police.”

On § 87(2)(b)'s arrest report (arrest # § 87(2)(b) (enc.), PO Shatkin stated verbatim that “at the place of occurrence defendant did jump on PO Hernandez back shield 4437 to prevent him from apprehending § 87(2)(b) after he punched PO Hernandez in the left side of his face with a closed fist. § 87(2)(b), § 87(2)(b), was able to flee the scene to due defendant actions.”

Memo Book

PO Shatkin's memo book which contains entries related to this incident has been lost. On March 12, 2014, he filed a formal complaint report about the lost memo book (enc. Q-8 – Q-10).

CCRB Statement

PO Shatkin was interviewed at the CCRB on February 25, 2014 (enc. G-6 – G-9). § 87(2)(g)

At the time and place of occurrence, PO Hernandez observed § 87(2)(b) § 87(2)(b) and § 87(2)(b) with open containers of alcohol and intended to issue them summonses. Upon approaching, PO Shatkin noticed one of the open containers was in one of the females' purses, and another open container was a bottle of Hennessey.

As PO Hernandez and PO Reeder were speaking with the three females, § 87(2)(b) came downstairs and started saying that § 87(2)(b), § 87(2)(b), and § 87(2)(b) could not be arrested. PO Shatkin requested § 87(2)(b) to leave numerous times, but the latter refused each time. All of a sudden, § 87(2)(b) ran around PO Shatkin, and punched PO Hernandez in the face and ran away. PO Shatkin pursued him for about a block, before heading back to the park because he did not want to leave PO Hernandez and PO Reeder alone.

When PO Shatkin returned to the park, § 87(2)(b) was already handcuffed. § 87(2)(b) was on PO Hernandez's back, choking him. PO Hernandez had one hand on his gun to protect it for fear of § 87(2)(b) acquiring the weapon. Additional units had already arrived by this time and a large crowd of civilians had gathered around the incident.

As PO Shatkin was conducting crowd control, § 87(2)(b) came back to the location. PO Shatkin approached § 87(2)(b) and stated “you're under arrest.” PO Garrett Roces and other unidentified officers also approached § 87(2)(b). PO Shatkin grabbed § 87(2)(b)'s left hand while PO Roces grabbed the right hand. However, § 87(2)(b) pushed PO Roces against a fence, and then voluntarily launched himself onto the ground, causing PO Shatkin to lose his grip. § 87(2)(b) landed chest forward on the ground, hitting his head in the process, and immediately put his hands underneath his chest, preventing the officers from handcuffing him. PO Shatkin tried to get § 87(2)(b)'s hands out from underneath him but needed assistance to do so.

PO Shatkin never punched, kicked, or stomped on § 87(2)(b) nor did he see any other officer do so. He did not deploy his asp or baton, nor did he see any other officer do so. He never put his hand over § 87(2)(b)'s nose and mouth, and did not see any other officer do so. After being handcuffed, § 87(2)(b) went limp and PO Shatkin and an unidentified officer had to lift him up and carry him to a police vehicle. PO Shatkin did notice cuts on § 87(2)(b)'s face, but denied seeing any bleeding. § 87(2)(b) continued to be uncooperative even after being handcuffed. While being placed in the vehicle, § 87(2)(b) “bicycled” his legs, kicking PO Shatkin in the thigh. Additionally, once inside the vehicle, § 87(2)(b) refused to move over, so PO Shatkin had to lift him up and shift him inside the vehicle.

PO Shatkin could not recall hearing any officer use profanity, nor did he ever do so himself. He did not hear any discussion about pepper spray. There was a crowd of more than one hundred people gathered around the incident, inside the park, and on the street. “Airmail” was being thrown from the windows of the residential building, including a crutch, fruit, and empty soda cans. None of these items hit any officer. PO Shatkin denied observing any civilian interfere with § 87(2)(b) arrest.

Witness Officer: PO EFRAIN HERNANDEZ

- PO Hernandez was § 87(2)(b) old at the time of the incident. He is a Hispanic man who is 5’11” tall, weighs 210 pounds, and has short black hair with brown eyes.
- PO Hernandez worked from 7:30 p.m. on May 3, 2013, to 7:50 a.m. on May 4, 2013, in uniform and assigned to a foot post. He has since been transferred to the 121st Precinct.

Memo Book

PO Hernandez’s memo book entries pertaining to this incident (enc. G-1) state verbatim that “at 9:20 p.m., 3 females stopped opposite § 87(2)(b). At § 87(2)(b) arrived at § 87(2)(b) due to injury.”

CCRB Statement

PO Hernandez was interviewed at the CCRB on February 25, 2014 (enc. G-2 – G-5). § 87(2)(g)

As PO Hernandez was asking § 87(2)(b), § 87(2)(b), and § 87(2)(b) for their identification, he heard PO Shatkin stop § 87(2)(b). PO Hernandez had his back to PO Shatkin and § 87(2)(b) and therefore did not see their interaction. All of a sudden, § 87(2)(b) punched PO Hernandez with a closed fist, on the left cheekbone, and immediately fled the scene with PO Shatkin in pursuit. PO Hernandez did not know why § 87(2)(b) punched him.

As PO Hernandez was trying to handcuff § 87(2)(b) he felt § 87(2)(b) hanging onto his neck in a chokehold. An unidentified officer pulled § 87(2)(b) off PO Hernandez’s back, allowing the latter to successfully handcuff § 87(2)(b). PO Hernandez then helped PO Reeder bring § 87(2)(b), § 87(2)(b), and § 87(2)(b) to a police vehicle. On the way to the car, PO Hernandez started to feel some pain to his neck, but ignored it for the time being.

Afterwards, § 87(2)(b) returned to the location with large group of civilians, shouting “Let’s get them out,” which PO Hernandez assumed to mean get § 87(2)(b), § 87(2)(b), and § 87(2)(b) out of the vehicle. PO Hernandez tried to help the other officers apprehend § 87(2)(b) but his neck pain started becoming severe so he stood back from the struggle, and never actually made any physical contact with § 87(2)(b). § 87(2)(b) had knocked PO Rocas against a fence, before forcing himself onto the ground. No officer was making physical contact with § 87(2)(b) when he went to the ground. Once on the ground, § 87(2)(b) kept his hands underneath his chest. PO Shatkin was the primary officer trying to handcuff § 87(2)(b) and kept issuing the commands “stop resisting, give us your hands.”

PO Hernandez did not hear any officer use profanity with § 87(2)(b) or see an officer punch, stomp, or kick § 87(2)(b). He also did not see any officer hit § 87(2)(b) with a radio, asp, or night stick. PO Hernandez never saw an officer deploy their asp or nightstick, and never observed any officer place their hands over § 87(2)(b)’s nose and mouth. He did not observe § 87(2)(b) with any injuries or bleeding, and did not recall § 87(2)(b) ever losing consciousness during the incident.

§ 87(2)(b)

Subject Officer: PO GARRETT ROCES

- PO Rocas was § 87(2)(b) old at the time of the incident. He is an Asian man who is 5’4” tall, weighs 200 pounds, and has black hair and brown eyes.

- On the date of incident, PO Roces worked the same tour and assignment as PO Reeder and PO Shatkin. He has since been transferred to the 121st Precinct.

Memo Book

PO Roces's memo book entries pertaining to this incident (enc. I-1 – I-3) state verbatim that “at 9:20 p.m., 3 females stopped opposite § 87(2)(b) by PO Hernandez for open container. As PO Hernandez attempted to write a summons deft's resisted furthermore deft's actions caused another deft to incite a large crowd to gather, leading to an arrest by PO Shatkin. At § 87(2)(b) actions caused me to get injured trying to affect a lawful arrest going to § 87(2)(b) in regards. At § 87(2)(b) as per § 87(2)(b) doctors, I suffer from a sprained elbow.”

CCRB Statement

PO Roces was interviewed at the CCRB on March 6, 2014 (enc. I-4 – I-6). § 87(2)(g)

When § 87(2)(b) came into the courtyard, PO Roces told him to leave as summonses were being issued. § 87(2)(b) had an aggressive demeanor, and asked the officers “what are you doing?” He then left the scene but soon returned with a few other people who came towards PO Shatkin and PO Roces, but otherwise did not make any physical or verbal interaction. § 87(2)(b) and § 87(2)(b), § 87(2)(b), and § 87(2)(b) all attacked PO Hernandez. PO Roces did not see any female with their arm or hands around PO Hernandez's neck. He could not recall exactly how § 87(2)(b) attacked PO Hernandez, but said § 87(2)(b) then fled and he and PO Shatkin pursued him. PO Roces lost § 87(2)(b) after a couple of minutes and returned to the courtyard with PO Shatkin as they had left PO Hernandez and PO Reeder alone with a number of other civilians.

At the scene, about twenty civilians were mulling around, prompting PO Roces to call for additional units. He did not see PO Hernandez or the three females. PO Roces was conducting crowd control when additional units arrived and § 87(2)(b) returned. PO Roces, PO Shatkin, PO Barreiro (who's time of appearance at the scene is unknown), and other unidentified officers tried to subdue § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) was flailing his arms, not letting officers get a hold of them for handcuffing, and moving around a lot. Because of such, PO Roces was pushed into a fence, causing a sprain to his left elbow. He stepped back from the struggle shortly afterwards, and did not see who finally handcuffed § 87(2)(b) PO Roces conducted crowd control, giving the commands for everyone to back up. He did not know if § 87(2)(b) was on the ground at any point, and did not observe § 87(2)(b) being escorted to a police vehicle. He did not recall if § 87(2)(b) was injured or bleeding at that time. PO Roces did not observe any officer punch, kick, or stomp § 87(2)(b) or have their hands over his nose and mouth. He denied doing these things himself.

At no point during the incident did PO Roces see any officer use or take out their pepper spray. Some unidentified officers had their asps deployed, but he did not see any officer strike § 87(2)(b) with asps, a flashlight or radio. PO Roces denied doing these things himself. The civilians at the scene interfered with the arrest of § 87(2)(b) by placing their bodies in between the officers and § 87(2)(b) PO Roces did not use profanity or hear any other officer do so.

When PO Roces returned to the 120th Precinct stationhouse, he saw § 87(2)(b) bleeding from his face. PO Roces then went to § 87(2)(b) to check up on his own injuries.

Subject Officer: PO GENARO BARREIRO

- PO Barreiro was § 87(2)(b) old at the time of the incident. He is a Hispanic man who is 5'6" tall, weighs 200 pounds, and has black hair and brown eyes.
- On the incident date, PO Barreiro worked the same tour and assignment as PO Reeder and PO

Shatkin and PO Roces. He has since been transferred to the 121st Precinct.

Memo Book

PO Barreiro's memo book entries pertaining to this incident (enc. I-7 – I-12) state verbatim that "at 9:20 p.m., 3 female stop opposite § 87(2)(b) by PO Hernandez for open container. As PO Hernandez attempted to write a summons deft's resisted further more deft's action caused another deft to incite a large crowd to gather, leading to an arrest by PO Shatkin. At § 87(2)(b) actions caused me to get injured trying to affect a lawful arrest. Going to § 87(2)(b) in regards. At § 87(2)(b) as per § 87(2)(b) Doctor, I have a fractured finger."

CCRB Statement

PO Barreiro was interviewed at the CCRB on March 5, 2014 (enc. I-13 – I-15). § 87(2)(g)

§ 87(2)(g), PO Barreiro placed himself at the incident from the beginning. He stated that when PO Hernandez was punched, he and PO Hernandez had been trying to handcuff the three females. PO Barreiro was able to get § 87(2)(b) off of PO Hernandez, and then bring her to the ground for handcuffing.

After § 87(2)(b), § 87(2)(b), and § 87(2)(b) were apprehended, PO Shatkin and PO Roces returned to the scene. Soon thereafter, § 87(2)(b) returned as well. By that time, there was a crowd of over fifty civilians gathered, all of whom were cursing at the officers. When § 87(2)(b) returned, PO Barreiro, PO Roces, and PO Shatkin, with other unidentified officers, went to subdue him. Immediately, § 87(2)(b) put up a fight, and resisted arrest. PO Barreiro stated that § 87(2)(b) swung at him, but did not make contact. A number of civilians interfered with the apprehension of § 87(2)(b) and a large crowd gathered around the struggle. PO Barreiro felt civilians on his back and on top of him. As a result of all of the commotion and moving bodies, § 87(2)(b) ended up on the ground. PO Barreiro specifically denied § 87(2)(b) going the ground as a result of police action. During the struggle, he punched § 87(2)(b) once in the right arm area to gain control of his arms. When he tried to punch § 87(2)(b) a second time, § 87(2)(b) grabbed PO Barreiro's hand, and twisted it, resulting in PO Barreiro fracturing his right pinky finger.

After receiving the injury, PO Barreiro retreated from the struggle due to his hand swelling up. He immediately informed Sgt. Fisher about his injury and went to the hospital thereafter. He did not see any officer hit § 87(2)(b) with a radio, baton, or an asp, nor did he ever do so himself. PO Barreiro also did not hear any officer mention or use pepper spray, nor did he do so. He did not witness § 87(2)(b) lose consciousness, and did not observe any injuries on § 87(2)(b) PO Barreiro did not recall hearing any officer use profanity with any civilian during the incident, and denied doing so himself.

Subject Officer: PO FRANK MUIRHEAD

- *PO Muirhead was § 87(2)(b) old at the time of the incident. He is a white man who is 5'8" tall, weighs 175 pounds, and has black hair and green eyes.*
- *PO Muirhead worked from 4 p.m. on May 3, 2013, to 12:35 a.m. on May 4, 2013. He worked in plainclothes, assigned to Anti-Crime with PO James Casale in unmarked vehicle § 87(2)(e), § 87(2)(b), which is a light tan Chevy Impala. He has since been transferred to the 121st Precinct Detective Squad.*

Memo Book

PO Muirhead's memo book entries pertaining to this incident (enc. L-1 – L-2) state verbatim that "at 9:20 p.m., need additional units by IRT at § 87(2)(b) At 9:27 p.m., arrived at location. At 9:35 p.m. assisted IRT in trying to handcuff individual for assault on PO and resisting arrest. Defendant was refusing to give his hands by placing them under his body and trying to grab at officers legs and flailing arms and legs. IRT placed individual in handcuffs. At 9:50, resumed patrol from need additional units."

CCRB Statement

PO Muirhead was interviewed at the CCRB on April 18, 2014 (enc. L-3 – L-4). § 87(2)(g)

When PO Muirhead arrived at the location, he conducted crowd control. He then saw three to four officers engage in a struggle with § 87(2)(b). PO Muirhead was about ten to fifteen feet away from the struggle and did not see much of what the officers were doing to § 87(2)(b) but did see § 87(2)(b) flail his arms and try to grab the officers' legs. The officers commanded § 87(2)(b) to give them his hands and stop resisting. No profanity was used.

PO Muirhead left his position as crowd control to help restrain § 87(2)(b). When he arrived at the struggle, § 87(2)(b) was already face-down on the ground, resisting arrest by keeping his arms underneath him, wriggling about, and kicking. PO Muirhead grabbed one of § 87(2)(b)'s wrists and forced it behind to be handcuffed. It took less than ten seconds. PO Shatkin handcuffed § 87(2)(b) and immediately returned to his position doing crowd control. He did not see which officers picked § 87(2)(b) up and brought him to a police vehicle. PO Muirhead was the only plainclothes officer involved in the struggle with § 87(2)(b) and denied observing PO Casale ever make physical contact with § 87(2)(b). PO Muirhead did not observe how § 87(2)(b) ended up on the ground, nor did he see any injuries on § 87(2)(b). He denied seeing any officer punch, kick, or stomp on § 87(2)(b) or put their hands over his nose and mouth. He denied that any officer had their asps or batons deployed, or talk about pepper spray. PO Muirhead never used any profanity toward any civilian, and did not hear any other officer do so. He denied seeing any officer hit § 87(2)(b) with a radio, or doing so himself.

Subject Officer: PO DANIELLE DONOGHUE

- PO Donoghue was § 87(2)(b) old at the time of the incident. She is a white woman, who is 5' tall, weighs 140 pounds, and has brown hair and brown eyes.
- On May 3, 2013, PO Donoghue worked from 3 p.m. to 11:35 p.m. with PO Michael Liconti, in uniform, assigned to patrol sectors E and F, and driving in marked patrol vehicle number 3273.

Memo Book

PO Donoghue's memo book entries pertaining to this incident (enc. L-5 – L-7) state verbatim that "at 9:35 p.m., need additional units at § 87(2)(b). At 9:48 p.m., arrived at location. At 10 p.m., transporting one female to 120 from location."

CCRB Statement

PO Donoghue was interviewed at the CCRB on April 28, 2014 (enc. L-8 – L-9).

At the time and place of occurrence, PO Donoghue arrived and saw more than fifty civilians gathered. A struggle ensued involving some unidentified uniformed officers on the ground, but PO Donoghue could not see the civilians with whom they were struggling. As she tried to make her way to assist, a black woman, § 87(2)(g) grabbed at her gun belt from behind and pulled on it. PO Donoghue turned around, pushed § 87(2)(b) and told her not to interfere. PO Donoghue turned back around, but § 87(2)(b) pushed her again. PO Donoghue turned around to face § 87(2)(b) and said "I thought I told you to leave me alone." § 87(2)(b) then opened her arms as if to square off with PO Donoghue, at which point PO Donoghue tackled her to the ground.

As PO Donoghue stood up, she heard officers stating that the fight had gone into the courtyard of § 87(2)(b) so she proceeded into the courtyard to assist. There was huge crowd so PO Donoghue had a hard time navigating through everyone to reach the courtyard. When she did, officers had already handcuffed a black female who was given to PO Donoghue and PO Liconti to escort to their patrol vehicle and transport to the stationhouse. PO Donoghue could not recall the apprehended female's identity or demeanor. She did not see § 87(2)(b) arrest or observe any officer strike him with a radio,

club, asp or nightstick. PO Donoghue carries all of these items, but did not deploy them during the incident. She did not see any officer stomp, kick, or punch § 87(2)(b) or deploy their pepper spray.

After bringing the apprehended female to the stationhouse, PO Donoghue left for the hospital, as she injured her left arm from tackling the unidentified black female. § 87(2)(b)

During the incident, she did not confer with any officer about § 87(2)(b) attacking her, as she was focused on assisting other officers. She later told her supervisor about how she incurred her injury. No attempts were made to apprehend § 87(2)(b)

Subject Officer: SGT. PATRICK O'NEILL

- *Sgt. O'Neill was § 87(2)(b) old at the time of the incident. He is a white man who is 6'4" tall, weighs 240 pounds, and has brown hair and brown eyes.*
- *On May 3, 2013, Sgt. O'Neill worked from 2:50 p.m. to 11:47 p.m. He was the Patrol Supervisor, in uniform, working with PO Brian Mullarkey, and driving in vehicle number 4131.*

Memo Book

Sgt. O'Neill does not have any memo book entries pertaining to this incident (enc. J-1 – J-3).

CCRB Statement

Sgt. O'Neill was interviewed at the CCRB on March 7, 2014 (enc. J-4 – J-6), but had no recollection of the incident.

Witness Officer: PO Brian MULLARKEY

- *PO Mullarkey was § 87(2)(b) old at the time of the incident. He is a white man who is 6'3" tall, weighs 160 pounds, and has brown hair and hazel eyes.*
- *On May 3, 2013, PO Mullarkey worked from 3 p.m. to 11:35 p.m., in uniform and assigned as Sgt. O'Neill's operator in marked vehicle number 4131. He has since transferred to the 121st Precinct.*

Memo Book

PO Mullarkey's memo book entries pertaining to the incident (enc. K-1 – K-4) state verbatim that "at 9:47 a.m., resuming patrol, responding to a level one at § 87(2)(b) At 9:55 p.m., arrived at location. At 10:20 p.m., resumed patrol."

CCRB Statement

PO Mullarkey was interviewed at the CCRB on April 1, 2014 (enc. K-5 – K-6).

At the time and place of occurrence, PO Mullarkey and Sgt. O'Neill responded to a level one mobilization radio call. The crowd was already dispersing, and PO Mullarkey never interacted with any civilians during the incident. About two minutes after arriving at the scene, the commanding officer requested that all officers go to a Home Depot down the block so he could account for everyone. PO Mullarkey resumed patrol after the incident ended.

Witness Officer: PO TYLER KALMAN

- *PO Kalman was § 87(2)(b) old at the time of the incident. He is a white man who is 5'6" tall, weighs 170 pounds, and has brown hair and brown eyes.*
- *PO Kalman worked from 5:30 p.m. on May 3, 2013, to 2:05 a.m. on May 4, 2013, in uniform and assigned to patrol Sectors G and H with PO Anthony Lamberti in marked vehicle number 4114.*

Memo Book

PO Kalman's memo book entries pertaining to this incident (enc. M-1 – M-3) state verbatim that "at 9:20 p.m., need additional units at § 87(2)(b) At 9:35 p.m., trans 1 male to 120 post #13, 1

under. At § 87(2)(b) to § 87(2)(b) w/ prisoner. At 10:50 p.m., report to command.”

CCRB Statement

PO Kalman was interviewed at the CCRB on May 2, 2014 (enc. M-4 – M-5).

Upon arrival at the incident location, an unidentified supervisor instructed PO Kalman to transport § 87(2)(b) to the stationhouse. PO Kalman could not recall § 87(2)(b) demeanor, and did not remember seeing any injuries on him. After arriving at the stationhouse, PO Kalman then transported § 87(2)(b) to § 87(2)(b) in a patrol vehicle. He could not remember if he was with any other officer. PO Kalman remained at the hospital for fifty minutes, where he did not interact with any other civilians besides § 87(2)(b) and the hospital staff. He never interacted with § 87(2)(b) or § 87(2)(b) and did not use profanity or threaten to arrest anyone. He could not recall which officers relieved him from his hospital duty. § 87(2)(b) never lost consciousness.

Other Officers Interviewed

The undersigned investigator interviewed witness officers, PO James Casale (enc. J-7 – J-9) and PO Michael Liconti (enc. M-6 – M-10). § 87(2)(g)

Medical Records

§ 87(2)(b) was brought to § 87(2)(b) § 87(2)(b) on § 87(2)(b)

The Emergency Department noted that § 87(2)(b) was not arousable as he was sedated, but was able to speak, move all extremities, and open his eyes. He complained of pain everywhere. He had lacerations to his head, swelling beneath his right eye, and a dislocated right shoulder. (MR-9)

Physician stated that lab results indicated a number of facial injuries were old – orbital wall fracture, and left zygomatic arch. Possible non-displaced right 9th rib fracture.

NYPD Documents

SPRINT Report

The SPRINT for this incident, event number F15330 (enc. N-1 – N-5) revealed that the incident was broadcast as a Level One.

Command Log

§ 87(2)(b) arrest was logged in at 9:45 p.m. (enc. Q-7). He was charged § 87(2)(b). He was noted as having a small laceration on the top of his right forehead. It is also noted that at 10 p.m., PO Kalman took § 87(2)(b) to § 87(2)(b).

UF-61

On March 12, 2014, PO Shatkin reported his memo book as lost (enc. Q-8 – Q-10). “Canvas of said item was conducted with negative results.” § 87(2)(g)

Arrests for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] (enc. R-8).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- On June 4, 2014, the undersigned investigator filed an inquiry as to whether § 87(2)(b), § 87(2)(b), § 87(2)(b), or § 87(2)(b) filed a notice of claim with the City of New York regarding this incident. A response has yet to be received. As of March 11, 2014, no notice of claim had been filed.

Civilian Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 § 87(2)(b)
 § 87(2)(b)
 § 87(2)(b)
 § 87(2)(b)

Civilians CCRB History

- This is the first CCRB complaint regarding § 87(2)(b) or § 87(2)(b) (enc. B-3 – B-4)
- § 87(2)(b) has previously filed, and § 87(2)(b) was previously listed in, one other CCRB complaint (enc. B-1 – B-2):
 - § 87(2)(b)

Subject Officers CCRB History

- PO Shatkin and PO Reeder have been members of the service for five years, PO Barreiro has been a member of the service for two years, Sgt. O'Neill and PO Donoghue have been members of the service for seven years, and PO Roces has been a member of the service for eight years. There are no substantiated CCRB allegations against any of them (enc. A-1 – A-7).
- PO Muirhead has been a member of the service for six years and there are four substantiated CCRB allegations against him (enc. A-8 – A-9):
 - In case no. 201016174, regarding a frisk allegation, the Board recommended Charges, and the NYPD imposed Instructions.
 - In case no. 201101810, regarding a physical force, search, and stop allegations, the Board recommended Charges, but the NYPD did not prosecute.

Conclusion

Identification of Subject Officers

PO Reeder identified himself as the officer who physically engaged § 87(2)(b) and brought her to the patrol vehicle. § 87(2)(g)

The investigation was only able to identify PO Shatkin, PO Barreiro, PO Roces, and PO Murihead as officers who physically interacted with § 87(2)(b) during his apprehension. § 87(2)(g)

§ 87(2)(b) also alleged that officers beat him with clubs and a radio, and that an officer put his hands over his nose and mouth. He could not describe these officers because he was face-down on the ground. None of the other civilians witnessed these allegations. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) alleged that two officers spoke discourteously during the incident. § 87(2)(b) described her subject officer as a white male with black spikey hair, approximately 5'7" tall, 160 to 165 pounds, and 25 to 30 years old. § 87(2)(b) described her subject officer as a male, approximately 5'5" tall, husky build, with salt and pepper hair, and in his late 40s to

early 50s. § 87(2)(g) . § 87(2)(g)

§ 87(2)(b) also alleged the same officer who spoke discourteously to her, threatened her with the use of force. § 87(2)(g)

§ 87(2)(b) alleged that at § 87(2)(b) an officer had threatened her and § 87(2)(b) with arrest. PO Kalman was identified as a potential officer since he transported § 87(2)(b) to the hospital. He was relieved from duty after fifty minutes. The command log states that PO Kalman brought § 87(2)(b) to § 87(2)(b) § 87(2)(b) stated that she and § 87(2)(b) arrived at the hospital at around 10:15 p.m., § 87(2)(g)

PO Kalman could not recall if he was alone or with another officer while at § 87(2)(b) In the Command Log, only his name is listed as transporting § 87(2)(b) In the two entries below that of § 87(2)(b) it was noted that both prisoners were transported to Central Booking by two officers, PO Kalman and PO Anthony Lamberti (who was PO Kalman's partner that day) § 87(2)(g)

However, PO Kalman stated that during the incident, he never interacted with any civilian, least of all threatened anyone with arrest. § 87(2)(b) described the subject officer as a white male, approximately 5'9" tall, heavy set, 215 pounds, with a receding hair line, and 40 years old, § 87(2)(g) who is a 5'6" tall white male, 170 pounds, with no receding hair line, and 35 years old. § 87(2)(g)

Allegations Not Pleaded

Although § 87(2)(b) alleged that PO Reeder said "shut the hell up" and "fuck no" to § 87(2)(b) , § 87(2)(b) herself did not allege any profanity being used against her. § 87(2)(g)

§ 87(2)(b) alleged that when officers went to apprehend § 87(2)(b) they also charged at her, causing her to fall onto the ground. Afterwards, officers tried to pull her away but she persisted in trying to get to § 87(2)(b) No other civilian alleged that § 87(2)(b) also fell when officers tried to apprehend § 87(2)(b) § 87(2)(g)

Additionally, the force that allegedly caused § 87(2)(b) to fall was not intentional, but was a result of her proximity to § 87(2)(b) § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Force – Outside of § 87(2)(b) in Staten Island, PO Thomas Reeder used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Reeder slammed § 87(2)(b) against the door of a patrol vehicle. § 87(2)(b) never described any of the officers becoming physically aggressive with § 87(2)(b) . § 87(2)(b) did state that PO Reeder brought her to the ground before handcuffing her, and described receiving a scrape to her shoulder as a result, but did not describe anyone slamming her against the door of a patrol vehicle.

PO Reeder stated that because § 87(2)(b) was interfering with PO Hernandez's police action,

she was to be arrested. § 87(2)(g) [REDACTED]
[REDACTED]. After being handcuffed, § 87(2)(b) [REDACTED] was able to slip out of one of the cuffs. PO Reeder and handcuffed her a second time, after which, he picked her up, escorted her to a patrol vehicle, and placed her inside. He denied slamming her against a vehicle. PO Hernandez and PO Barreiro both denied seeing any officer slam her against a vehicle.

Patrol Guide Procedure 203-11 states that “only that amount of force necessary to overcome resistance will be used to effect an arrest.” (enc. AA-1 – AA-2)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation B: Force – Outside of § 87(2)(b) [REDACTED] in Staten Island, PO Leonid Shatkin used physical force against § 87(2)(b) [REDACTED]

Allegation C: Force – Outside of § 87(2)(b) [REDACTED] in Staten Island, PO Genaro Barreiro used physical force against § 87(2)(b) [REDACTED]

Allegation D: Force – Outside of § 87(2)(b) [REDACTED] in Staten Island, PO Garrett Roces used physical force against § 87(2)(b) [REDACTED]

Allegation E: Force – Outside of § 87(2)(b) [REDACTED] in Staten Island, PO Frank Muirhead used physical force against § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED], § 87(2)(b) [REDACTED], and § 87(2)(b) [REDACTED] all alleged that serious physical force was used against the latter. According to § 87(2)(b) [REDACTED] she was holding § 87(2)(b) [REDACTED] when multiple officers pulled him away from her. He moved his arms away from the officers, but was otherwise not physically combative. The officers pinned him to the ground and handcuffed him. About thirty officers then punched, kicked, and stomped on him. As a result, an officer got § 87(2)(b) [REDACTED] blood on his shoes.

According to § 87(2)(b) [REDACTED], § 87(2)(b) [REDACTED] was handcuffed while standing up, and officers then “charged” at her and § 87(2)(b) [REDACTED] causing them both to fall to the ground. Officers then kicked, punched, and stomped on § 87(2)(b) [REDACTED] who was not kicking his legs or moving his body.

According to § 87(2)(b) [REDACTED] more than ten officers grabbed him and brought him to the ground. He was then beaten with clubs and radios, and kicked in the ribs. One officer also put his hands over § 87(2)(b) [REDACTED] nose and mouth, stopping his breathing. Officers told § 87(2)(b) [REDACTED] to put his hands behind his back. When the latter complained that he couldn’t, he was hit on the right side of his forehead with either a club or a radio. § 87(2)(b) [REDACTED] denied moving or squirming his body. He suffered a bruise to the bone under his right eye, scrapes on his elbows, and a broken right rib.

§ 87(2)(g) [REDACTED]
[REDACTED]

As a result, PO Roces sprained his elbow and PO Barreiro dislocated his finger. § 87(2)(g) [REDACTED]
[REDACTED]

PO Shatkin and PO Hernandez said § 87(2)(b) [REDACTED] pushed PO Roces into the fence. PO Barreiro said § 87(2)(b) [REDACTED] swung at him, but did not make contact. He admitted to punching § 87(2)(b) [REDACTED] once in the arm to try and gain his compliance, and said when he tried to punch § 87(2)(b) [REDACTED] a second time, the latter grabbed and twisted his hand, dislocating his finger. § 87(2)(g) [REDACTED] PO Shatkin and PO Hernandez said he went to the ground by himself. PO Barreiro said § 87(2)(b) [REDACTED] fell when numerous

civilians tried to interfere with the arrest, and the force of the crowd pushed him to the ground.

§ 87(2)(g)

PO Muirhead said he only interacted with § 87(2)(b) after the latter was on the ground. He saw that the other officers were struggling to get § 87(2)(b) hands out from under him, and that § 87(2)(b) was wriggling about and kicking. PO Muirhead grabbed one of § 87(2)(b) wrists and pulled him it behind his back. This took less than ten seconds. Immediately after, PO Muirhead resumed conducting crowd control.

PO Shatkin recalled that § 87(2)(b) had cuts on his face, and speculated that it was from when he fell to the ground. None of the other officers remembered § 87(2)(b) being injured or bleeding at the scene. All the officers denied stomping on or kicking § 87(2)(b).

Video footage taken during the incident depicts part of § 87(2)(b) handcuffing. It shows him face down on the ground, surrounded by uniformed and plainclothes officers, and shows PO Shatkin handcuffing him. No other officers make contact with him, and no officer kicks, stomps, or punches him. No nightsticks, batons, asps, or pepper sprays are displayed. A large stain of blood can be seen on the ground next to § 87(2)(b).

The physician at § 87(2)(b) diagnosed him with a fractured rib, and facial bruising and swelling, but he was not diagnosed with any lacerations.

Patrol Guide Procedure 203-11 states that an officer may use only the amount of force necessary to overcome resistance to effect an arrest. (enc. AA-1 – AA-2)

§ 87(2)(g)

It is undisputed that § 87(2)(b) was injured. § 87(2)(b), § 87(2)(b) and § 87(2)(b) all allege that officers punched, kicked, and stomped on § 87(2)(b). However, with the exception of PO Barreiro, all of the officers denied using force beyond pulling his hands behind his back. PO Barreiro admitted to punching § 87(2)(b) in the arm once in order to get his compliance. § 87(2)(g)

§ 87(2)(b) The video footage, which does not show any of the alleged force, only shows part of the incident.

§ 87(2)(g)

Allegation F: Force – Outside of § 87(2)(b) in Staten Island, Officers struck § 87(2)(b) with asps, batons, and a radio.

§ 87(2)(b) alleged that after being brought to the ground, he was beaten with clubs and radios. He was unable to describe the type of club that struck him as he was face down on the ground.

§ 87(2)(g) All of the officers interviewed, except PO Roces, denied deploying, or seeing any officer deploy, their asps, batons, or radios to hit a civilian. PO Roces observed some officers with asps drawn, but never saw any officers use them. None of the videos depict any officers holding the aforementioned weapons, or using them against a civilian. No one can be heard exclaiming about the use of such weapons in any of the videos.

§ 87(2)(g)

Allegation G: Force – Outside of § 87(2)(b) in Staten Island, an officer used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that while he was on the ground, his nose and mouth were covered by an officer's hands, restricting his breathing.

All officers interviewed denied placing § 87(2)(b) in a chokehold, and denied seeing any officer do so either.

§ 87(2)(g)

Allegation H: Force – Outside of § 87(2)(b) in Staten Island, PO Danielle Donoghue used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Donoghue attacked her from behind and brought her to the ground. She was not injured as a result. She denied that she had physically engaged with any of the officers prior to this, and said she had been asking, from about two feet away, what was going on with § 87(2)(b)

§ 87(2)(g)

PO Donoghue explained that when she arrived at the location, she tried to assist the struggling officers, but that § 87(2)(b) pushed her from behind and grabbed at her gun belt. PO Donoghue told her to stop, but § 87(2)(b) pushed her again. When PO Donoghue turned to face § 87(2)(b) a second time, § 87(2)(b) opened up her arms in a fighting stance, so PO Donoghue tackled her to the ground. Immediately after the tackle, PO Donoghue got up and went towards the courtyard where the struggle with § 87(2)(b) was occurring. She did not pay any further attention to § 87(2)(b)

PO Donoghue never attempted to place § 87(2)(b) under arrest, nor did she inform any officers at the scene that § 87(2)(b) had attacked her. As a result of tackling § 87(2)(b) to the ground, PO Donoghue injured her left arm, § 87(2)(b) PO Liconti said he did not observe this interaction between PO Donoghue and § 87(2)(b)

Video footage of the incident shows § 87(2)(b) acting irate and hostile. Her voice is heard constantly screaming, and officers are heard repeatedly saying "back up," presumably to § 87(2)(b)

Patrol Guide Procedure 203-11 states that "only that amount of force necessary to overcome resistance will be used to effect an arrest." (enc. AA-1 – AA-2)

It is undisputed that PO Donoghue used force against § 87(2)(b) who was not arrested.

§ 87(2)(g)

§ 87(2)(g)

Allegation I: Discourtesy – Outside of § 87(2)(b) in Staten Island, officers spoke rudely to § 87(2)(b) and individuals.

Allegation J: Abuse of Authority – Outside of § 87(2)(b) in Staten Island, an officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that an officer told her to “shut the fuck up.” § 87(2)(b) alleged that an officer stated to no one in particular, “I can pull him the fuck over.” § 87(2)(b) also alleged that the officer who spoke rudely to her also stated to her “someone get the pepper spray and spray her.” She admitted that she was yelling and acting hysterically before both the profane statement and threat were made, and that a number of other officers had also asked her to calm down and back up. § 87(2)(g)

All of the officers interviewed categorically denied using profanity or threatening to arrest anyone. Additionally, PO Shatkin said § 87(2)(b) even after being handcuffed, was uncooperative, kicked PO Shatkin in the thigh while he was being placed in the police vehicle, and refused to move over. PO Shatkin had to lift him up and shift him inside the vehicle.

In the video footage, § 87(2)(b) and other civilians can be heard yelling profanities at the officers. Officers can also be heard saying “back up,” § 87(2)(g)

Police Department v. Court says an officer may use “an impolite word during a stressful street encounter where that officer is attempting to maintain control of the situation.” (enc. AB-1 – AB-11)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation K: Abuse of Authority – At § 87(2)(b) in Staten Island, an officer threatened to arrest § 87(2)(b) and § 87(2)(b)

§ 87(2)(b), and only she, alleged that when she and § 87(2)(b) went to the hospital, an officer told them to get off the floor or they would be arrested. § 87(2)(b) admitted that she and § 87(2)(b) were acting hysterically because they were not allowed to see § 87(2)(b)

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Team: 3

Investigator:	_____	<u>Yanjiao Chen</u>	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date